

Hogtoberfest Participant Waiver, Release of Liability, Assumption of Risk, Indemnification, and Arbitration Agreement

1. Assumption of Risk

I understand that hunting, firearms use, nighttime activities, off-road travel, vehicle operation, use of dogs, outdoor recreation, and related activities involve inherent risks that may result in property damage, serious bodily injury, permanent disability, illness, or death.

I voluntarily assume all risks associated with participation in the Hogtoberfest Hog Hunt, whether known or unknown, foreseeable or unforeseeable.

2. Release of Liability

I release, waive, discharge, and hold harmless the Stroud Lions Club, Hogtoberfest, event organizers, sponsors, volunteers, judges, affiliated organizations, and their respective officers, directors, members, employees, representatives, and agents from any and all claims, demands, causes of action, damages, losses, liabilities, costs, or expenses arising out of or related to my participation in the Event.

This release applies to claims arising from personal injury, death, property damage, or other loss, regardless of cause, to the fullest extent permitted by law.

3. Legal Compliance

I agree to comply with all federal, state, and local laws, regulations, licensing requirements, and hunting regulations.

I understand that I am solely responsible for obtaining landowner permission and any licenses or permits required by law.

4. Rules Compliance

I agree to comply with all Event rules and understand that violation of the rules may result in disqualification, forfeiture of prizes, forfeiture of entry fees, and removal from the Event.

I understand that event officials and the Judges Panel have final authority regarding rule interpretation, scoring, eligibility, investigations, and award determinations.

5. Polygraph Agreement

I understand that event officials may require a polygraph examination in connection with rule compliance, scoring verification, eligibility verification, or investigation of suspected violations.

I agree to submit to a polygraph examination if requested by event officials. Refusal to submit to a requested examination may result in disqualification and forfeiture of prizes, awards, and winnings.

6. Medical Authorization

In the event of illness, injury, or emergency, I authorize emergency medical treatment deemed necessary by emergency personnel. I understand that I am solely responsible for any medical expenses incurred.

7. Photography and Media Release

I grant permission to the Stroud Lions Club and Hogtoberfest organizers to photograph, record, and use my name, likeness, image, voice, and participation for promotional, advertising, fundraising, educational, and media purposes without compensation.

8. No Refunds

I understand that the Event will be conducted rain or shine.

I understand that entry fees, side pot fees, sponsorship fees, and related payments are non-refundable for any reason, including weather, travel issues, scheduling conflicts, equipment failure, personal circumstances, or event cancellation beyond the control of organizers.

9. Independent Hunting Activities

I understand and acknowledge that the Stroud Lions Club, Hogtoberfest, event organizers, sponsors, volunteers, judges, and affiliated organizations do not organize, supervise, direct, control, monitor, or participate in my hunting activities during the official hunt period.

I further understand that participants independently select their hunting locations, travel routes, equipment, vehicles, firearms, hunting methods, hunting companions, and hunting activities.

The Stroud Lions Club and Hogtoberfest do not provide guides, outfitters, transportation, hunting services, equipment, property access, landowner permissions, lodging, or field supervision.

I acknowledge that all hunting activities conducted during the hunt period are undertaken independently and at my own risk.

10. Limitation of Event Responsibilities

I understand that the role of the Stroud Lions Club and Hogtoberfest is limited to organizing the competition, registration process, festival activities, official check-in procedures, scoring, prize distribution, and related event administration.

I acknowledge that neither the Stroud Lions Club nor Hogtoberfest assumes any responsibility for participant conduct, hunting activities, vehicle operation, firearm use, dog handling, property access, travel, lodging, or other activities occurring outside official event functions.

I agree that any injury, damage, loss, claim, or liability arising from hunting activities conducted during the hunt period shall remain the sole responsibility of the participant and not the responsibility of the Stroud Lions Club, Hogtoberfest, event organizers, sponsors, volunteers, judges, or affiliated organizations.

11. Indemnification

I agree to indemnify, defend, and hold harmless the Stroud Lions Club, Hogtoberfest, event organizers, sponsors, volunteers, judges, affiliated organizations, and their respective officers, directors, members, employees, representatives, and agents from and against any claims, demands, causes of action, damages, liabilities, losses, costs, expenses, attorney fees, or judgments arising from or related to my participation in the Event, my conduct, my hunting activities, my rule violations, my negligence, or my violation of any law.

12. Arbitration Agreement and Limitation of Damages

Any dispute, claim, controversy, or cause of action arising out of or relating to the Event, participation in the Event, registration, scoring, prize distribution, rules enforcement, waiver provisions, or any related matter shall be resolved exclusively through binding arbitration.

The arbitration shall be conducted in Oklahoma in accordance with the rules of the American Arbitration Association or another mutually agreed arbitration provider.

The parties agree to waive any right to trial by jury and agree that arbitration shall be the sole and exclusive remedy for resolving disputes arising from participation in the Event.

Each party shall bear its own attorney fees and costs unless otherwise awarded by the arbitrator.

To the fullest extent permitted by law, any recovery, award, judgment, settlement, or damages arising from any claim related to the Event shall be limited to the amount of registration and entry fees actually paid by the participant to the Event.

Under no circumstances shall the Stroud Lions Club, Hogtoberfest, event organizers, sponsors, volunteers, judges, or affiliated organizations be liable for consequential, incidental, indirect, special, exemplary, or punitive damages.

The arbitrator's decision shall be final and binding upon all parties.

13. Acknowledgment

By completing registration, I acknowledge that I have read, understood, and voluntarily accepted this Waiver, Release of Liability, Assumption of Risk, Indemnification, and Arbitration Agreement.

I understand that I am giving up certain legal rights by agreeing to these terms.